

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JUSTIN DANIELY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANSARI KALIL, tax # 937096, POLICE OFFICER
ANGELO PIZZARO, tax # 937294,

Defendants.

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**FIRST AMENDED
COMPLAINT**

CV 11 3257 (ARR) (JMA)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. Plaintiff, who is employed as a paraprofessional for the New York City Department of Education and a counselor in two after-school programs, including the YWCA, brings this civil rights action against the City of New York and two New York City Police Officers of Police Service 1 (“PSA 1”) alleging that, on May 20, 2011, in the Coney Island section of Brooklyn, defendants violated his rights under 42 U.S.C. § 1983, the First, Fourth and Sixth Amendments to the United States Constitution and New York state law by retaliating against him for engaging in free speech, falsely arresting him, using excessive force on him and making false allegations about him to prosecutors which deprived him of liberty. Plaintiff seeks compensatory and punitive damages, attorney’s fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the First, Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest, assault, battery and vicarious liability which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. With respect to plaintiff's state law claims, a notice of claim was duly filed with the City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiff's state law claims.

5. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

PARTIES

6. Plaintiff is a resident of Brooklyn who lives with his wife and two children. In addition to working three jobs, plaintiff has accumulated approximately sixty college credits.

7. The City of New York is a municipal corporation organized under the laws of the State of New York.

8. Officers Ansari Kalil and Angelo Pizzarro are members of the New York City Police Department ("NYPD"). Defendants were acting under color of state law and in their capacities as members of the NYPD at all relevant times. Defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

9. On May 20, 2011, at approximately 11:45 p.m., plaintiff was in front of his grandmother's building at 2960 West 24th Street (Ocean Towers) in the Coney Island section of Brooklyn.

10. At all relevant times, plaintiff was obeying the law and had not committed a crime or violation.

11. Officers Ansari Kalil and Angelo Pizzarro of PSA 1, both of whom were in plainclothes, ordered plaintiff and several males in the vicinity to get up against a wall of the building.

12. Plaintiff complained about being harassed.

13. In response, Officer Kalil pointed his gun at plaintiff and Officer Pizarro officer grabbed plaintiff, slammed him into the wall, handcuffed him excessively tight and searched him.

14. Plaintiff continued to question the officers' conduct, which caused Pizzarro to again grab plaintiff and slam him into the wall.

15. Both officers refused plaintiff's requests to loosen the handcuffs.

16. The two officers drove plaintiff to PSA1 for arrest processing and placed him in a cell.

17. While plaintiff was held in the precinct, no officer provided him with food or water.

18. In the precinct, Officer Kalil, with the acquiescence of Officer Pizarro, falsely charged plaintiff with inciting to riot and disorderly conduct

19. At approximately 9:00 a.m., on May 21, 2011, two unidentified officers took plaintiff to Brooklyn Central Booking.

20. Plaintiff was held in cells in Brooklyn Central Booking which were severely overcrowded, extremely cold, filthy and infested with rodents and roaches. The toilets were covered in feces, urine and other types of human discharge and there were no beds or cots for plaintiff and the other detainees to sleep on.

21. While plaintiff was in Brooklyn Central Booking, Officer Kalil, with the acquiescence of Officer Pizarro, misrepresented to the Kings County District Attorney's Office that plaintiff had attempted to incite a riot and was disorderly.

22. Defendants' purposes in commencing a bogus prosecution against plaintiff was to have plaintiff convicted of and punished for a crime he did not commit in retaliation for his use of free speech, to obtain overtime compensation and to obtain credit for an arrest.

23. As a result of defendants' misrepresentations, the District Attorney's Office charged plaintiff with inciting to riot and disorderly conduct.

24. Plaintiff was brought before a judge in criminal court on May 21, 2011, at approximately 11:30 p.m., and the false charges were adjourned in contemplation of dismissal.

25. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was incarcerated for approximately 24 hours and suffered physical injuries, emotional distress, fear, anxiety, humiliation and damage to his reputation.

FIRST CLAIM

(FALSE ARREST)

26. Plaintiff repeats the foregoing allegations.

27. At all relevant times, plaintiff did not commit a crime or violation.

28. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

29. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(UNREASONABLE FORCE)

30. Plaintiff repeats the foregoing allegations.

31. Defendants' use of force upon plaintiff or their failure to intervene to stop the use of force was objectively unreasonable and caused plaintiff pain and injury.

32. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for unreasonable force.

THIRD CLAIM

(DENIAL OF A FAIR TRIAL)

33. Plaintiff repeats the foregoing allegations.

34. Defendants' misrepresentations to the District Attorney's Office that plaintiff had committed a crime deprived plaintiff of liberty in that he was held in jail until his arraignment.

35. Accordingly, defendants are liable to plaintiff under the Sixth Amendment for denying him a fair trial.

FOURTH CLAIM

(VIOLATION OF RIGHT TO FREE SPEECH)

36. Plaintiff repeats the foregoing allegations.

37. Plaintiff's use of free speech during the incident was a motivating factor in defendants' decisions to use force upon, arrest, search and prosecute plaintiff.

38. Accordingly, defendants are liable to plaintiff under the First Amendment for violating his right to free speech.

FIFTH CLAIM

(*MONELL CLAIM AGAINST THE CITY OF NEW YORK*)

39. Plaintiff repeats the foregoing allegations.

40. The City of New York is a “person” within the meaning of 42 U.S.C. § 1983.

41. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

42. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

43. Several members of the NYPD, especially narcotics officers, have been arrested and convicted of crimes for making false allegations and for corruption.

44. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

45. In 2011, former Brooklyn South narcotics officer Jerry Bowen was convicted of murder and attempted murder while under indictment for corruption.

46. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

47. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them.

48. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

SIXTH CLAIM

(FALSE ARREST UNDER STATE LAW)

49. Plaintiff repeats the foregoing allegations.

50. At all relevant times, plaintiff did not commit a crime or violation.

51. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

52. Accordingly, the defendants are liable to plaintiff under New York state law for false arrest.

SEVENTH CLAIM

(ASSAULT)

53. Plaintiff repeats the foregoing allegations.

54. Defendants' use of force upon and search of plaintiff placed him in fear of imminent harmful and offensive physical contacts which injured him.

55. Accordingly, defendants are liable to plaintiff under New York state law for assault.

EIGHTH CLAIM

(BATTERY)

56. Plaintiff repeats the foregoing allegations.

57. Defendants' use of force upon plaintiff and search of plaintiff were offensive and nonconsensual physical contacts which injured him.

58. Accordingly, defendants are liable to plaintiff under New York state law for battery.

NINTH CLAIM

(VICARIOUS LIABILITY CLAIM AGAINST CITY OF NEW YORK)

59. Plaintiff repeats the foregoing allegations.

60. Defendants were acting within the scope of their employment as members of the NYPD when they falsely arrested, assaulted and battered plaintiff.

61. Accordingly, the City of New York is vicariously liable to plaintiff under New York state law for false arrest, assault and battery.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: November 3, 2011

/s/

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